

23SMCV01971 23SMCV01971

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-07-09

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Case Number: 23SMCV01971 Hearing Date: July 9, 2026 Dept: N

TENTATIVE RULING

Plaintiff Michael S. Berlin's Motion to Compel Deposition and Production of Writings is GRANTED. The parties shall meet and confer regarding the deposition of Defendant Galib A. Galib to occur within sixty (60) days of entry of this order.

Plaintiff Michael S. Berlin's Request for Monetary Sanctions is GRANTED in the reduced amount of \$2,395, payable by Defendant Galib A. Galib and defense counsel to Plaintiff Michael S. Berlin and Plaintiff's counsel within thirty (30) days of entry of this order.

Plaintiff Michael S. Berlin to give notice.

Plaintiff is entitled to take Defendant's deposition, and it is clear that the deposition was noticed to occur before the discovery cutoff (see Code Civ. Proc., § 2024.020, subd. (a)), but Defendant obstructed Plaintiff's ability to take the deposition by refusing to provide alternative dates for deposition while promising to do so. For that reason, Plaintiff Michael S. Berlin's Motion to Compel Deposition and Production of Writings is GRANTED. The parties shall meet and confer regarding the deposition of Defendant Galib A. Galib to occur within sixty (60) days of entry of this order.

Code of Civil Procedure section 2025.450, subdivision (g)(1), provides that if a motion to compel a deposition is granted, the Court shall impose monetary sanctions "in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." The Court finds that monetary sanctions are proper, but the Court reduces the requested award to \$2,395, which represents 6.5 hours preparing the present motion and ex parte application at a rate of \$350 per hour, as this action was not particularly complex, plus two \$60 filing fees. Accordingly, Plaintiff Michael S. Berlin's Request for Monetary Sanctions is GRANTED in the reduced amount of \$2,395, payable by Defendant Galib A. Galib and defense counsel to Plaintiff Michael S. Berlin and Plaintiff's counsel within thirty (30) days of entry of this order.